

DECODED EXPLAINED

21st June, 2026

WALKING ON FOOTPATHS IS A FUNDAMENTAL RIGHT: SC RULING

Right of way

India needs to build more footpaths to help pedestrians walk freely

As part of the Supreme Court's expansion of Article 21 since the 1970s, it has declared the right to walk on demarcated footpaths a fundamental right. The Bench of Justices P.S. Narasimha and Atul S. Chandikar reaffirmed the right in a case seeking higher compensation for a five-year-old boy's death after being struck and killed by a tanker lorry in Karnataka. As motorised transport has become more widespread, the Bench noted with regret that walking has become an inconvenience, with motorists often treating pedestrians as a 'nuisance' to be tolerated or cleared. In the absence of a national law governing pedestrian rights, responsibility for pedestrian safety is split across municipal laws, town-planning statutes, and street design guidelines. As such, pedestrians are considered to be safe if they face no immediate physical harm. Most cities also lack continuous unobstructed footpaths; where footpaths do exist, they are often encroached on by parking, vendors, utilities, and construction debris, and competing pressures such as road widening work.

While a right to walk is desirable, the ideas that pavements belong to pedestrians and that they have right of way should be cultural in order to endure. Rights-based legislation in India that has sought to change public culture has had mixed success. The Street Vendors Act 2014 sought to protect vendors from harassment as under Article 19(1)(g). But in most cities, municipalities still conduct 'eviction drives' while implementation has lagged because the Act requires surveys, town vending committees, and the demarcation of vending zones – processes that many urban local bodies have delayed or simply abandoned. Weak implementation has allowed informal rent-seeking by officials to persist in some cases. The new judgment is also likely to set up disputes with the 2014 Act. Second, the Cigarettes and Other Tobacco Products Act 2003 curtailed public smoking over 20 years, but not by 'restitutionary remedies', as the Court has suggested for walking, but with consistent social messaging and small, immediate fines. Finally, despite strict laws and 'Swachh Bharat' mandates, the culture of littering remains because the law focuses on citizens' duty to segregate whereas the state has often overlooked its duty to collect segregated waste. Similarly, if the state does not build footpaths, the citizen's right will be meaningless. The Court's constitutional nudge may thus lead to no real change if it remains a legal tool for compensation after a tragedy. A state using it to 'cleanse' streets of informal commercial activity could also gentrify these public spaces and criminalise the survival of the urban poor. The nudge's principal path to success will be by moving the state's funds towards pedestrian infrastructure.

Walking on footpaths a fundamental right, rules Supreme Court

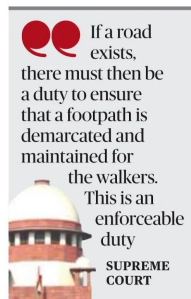
Krishnadas Rajagopal

NEW DELHI

The Supreme Court on Friday, in a judgment, declared the freedom to walk on demarcated and well-maintained footpaths a fundamental right which has priority over movement by motorised vehicles. The court highlighted the need to lay down a statutory framework, not only for declaring the right to walk a fundamental right, but also to recognise the duty-bearers.

"If a road exists, there must then be a duty to ensure that a footpath is demarcated and maintained for the walkers. This is an enforceable duty. The fundamental right to walk on demarcated footpaths shall override the privilege of a motorised vehicle," Justice P.S. Narasimha, who authored the judgment, held.

The judgment came in a case of the death of a five-



year-old boy who was crushed to death by a truck while walking to the school with his father.

Justice Narasimha said walking safely and carefree along wide footpaths, without danger lurking at every turn, was the most basic of rights.

CONTINUED ON

» PAGE 8

EDITORIAL: RIGHT OF WAY

» PAGE 6

Walking on footpath is a fundamental right: SC

"It is the simplest of the human activity, inextricably connected to life," the court said.

The court said the Constitution recognised and guaranteed walking as a fundamental right in its words, "All citizens shall have the right... to move freely throughout the territory of India".

But over the years, demands of economy, trade and rapid urbanisation have relegated walking to an inconvenience. Moving on wheels have eclipsed human imagination. Governments and local bodies paralleled wide roads and expressways to growth, busily building motorways while leaving little space for the essential pleasure of walking, the court said.

"It could also be elitism to start with, for machines with wheels were only for the rich, but as economies progressed and cheaper motor vehicles were introduced, the entire spectrum of motorised transportation dominated the roads, pushed aside the walkers to the extent that they are treated as a nuisance for the drivers who routinely run over the walkers and their footpaths. This should stop from now on as we declare the fundamental right to walk on demarcated footpaths alongside motorised roads," the top court said.

"Walking is a struggle for the not-so-fortunate, meditation in motion for many, resistance for others, discovery for the inquisitive, a cohesive strategy for sharp socio-political minds. It certainly did inspire and ignite some of the ideals of the freedom struggle... In that sense, walking is not just motion, it certainly embodies expressional, congregational and associational rights under Article 19(1)(a), Article 19(1)(b) and Article 19(1)(c)," Justice Narasimha said.

"How much does it take to create a well-demarcated footpath wherever a road exists? All that the fundamental right to walk demands is a comfortable space for an easy and carefree walk. Should this not be the minimum of the minimum duty that a municipal authority owes to the citizens," the court asked the government.

The court found that the parent was entitled to compensation of over ₹11 lakh.

WALKING ON FOOTPATHS IS A FUNDAMENTAL RIGHT: SC RULING

● **The Ruling**

- Supreme Court (Bench of Justices P.S. Narasimha and Atul S. Chandurkar) held that the right to walk on demarcated, well-maintained footpaths is a fundamental right which has priority over movement by motorised vehicles
- Arose from a case seeking higher compensation for a five-year-old boy crushed to death by a truck while walking to school in Karnataka; compensation enhanced to over Rs.11 lakh

● **Constitutional Basis**

- **Grounded in Article 21 (expanded since the 1970s) and the freedom to move freely under Article 19(1)(d)**
- Justice Narasimha held that walking also embodies expressional, congregational and associational rights under Articles 19(1)(a), (b) and (c)

● **Court's Key Observations**

- 'If a road exists, there must then be a duty to ensure that a footpath is demarcated and maintained for the walkers. This is an enforceable duty'
- Highlighted the need for a statutory framework that not only declares the right but also identifies the duty-bearers responsible for it

WALKING ON FOOTPATHS IS A FUNDAMENTAL RIGHT: SC RULING

- **Ground Reality (Editorial Critique)**

- No national law governs pedestrian rights; responsibility is split across municipal laws, town-planning statutes and street-design guidelines
- Most cities lack continuous, unobstructed footpaths; where they exist, they are encroached by parking, vendors, utilities and construction debris

- **Lessons from Similar Rights-Based Laws**

- Street Vendors Act 2014 protects vendors under Article 19(1)(g), but weak implementation has let 'eviction drives' continue
- Cigarettes and Other Tobacco Products Act 2003 curbed smoking through social messaging and fines rather than compensation; Swachh Bharat shows littering persists where the state fails its own duty to collect segregated waste
- **Risk: using the ruling to 'cleanse' streets of informal commercial activity could gentrify public space and criminalise the urban poor's survival activities**

WALKING ON FOOTPATHS IS A FUNDAMENTAL RIGHT: SC RULING

Practice Question

With reference to the recent Supreme Court ruling on the right to walk on footpaths, consider the following statements:

- 1. The Court held that the fundamental right to walk on demarcated footpaths overrides the privilege of motorised vehicles.**
- 2. The judgment was grounded in Article 21 read with the freedom of movement guaranteed under Article 19(1)(d).**
- 3. The ruling has enacted a new national law specifically governing pedestrian infrastructure and rights.**

Which of the statements given above is/are correct?

- (a) 1 and 2 only**
- (b) 2 and 3 only**
- (c) 1 and 3 only**
- (d) 1, 2 and 3**

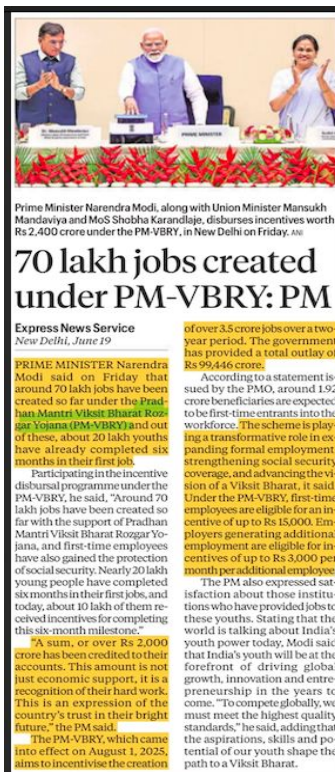
WALKING ON FOOTPATHS IS A FUNDAMENTAL RIGHT: SC RULING

Answer

Correct Option: (a) 1 and 2 only

Explanation: Statement 3 is incorrect. The Court has expanded the right through judicial interpretation, but no national law on pedestrian rights currently exists; responsibility remains split across municipal laws, town-planning statutes and street-design guidelines. Statements 1 and 2 correctly describe the basis and effect of the ruling.

70 LAKH JOBS CREATED UNDER PM-VBRY: PM



70 LAKH JOBS CREATED UNDER PM-VBRY: PM

● **Scheme Overview**

- Pradhan Mantri Viksit Bharat Rozgar Yojana (PM-VBRY) came into effect on August 1, 2025
- Aims to incentivise the creation of over 3.5 crore jobs over a two-year period, with a total outlay of Rs.99,446 crore

● **Recent Progress**

- PM Modi: around 70 lakh jobs created so far under PM-VBRY; about 20 lakh youths have already completed six months in their first job
- About 10 lakh of these received incentives for completing the six-month milestone; over Rs.2,000 crore credited to their accounts
- Around 1.92 crore beneficiaries are expected to be first-time entrants into the workforce

● **Incentive Structure**

- First-time employees are eligible for an incentive of up to Rs.15,000
- Employers generating additional employment are eligible for incentives of up to Rs.3,000 per month per additional employee

● **Significance**

- The scheme aims to expand formal employment, strengthen social security coverage, and advance the vision of a 'Viksit Bharat'
- Part of a broader push to formalise India's workforce by incentivising both employees and employers

70 LAKH JOBS CREATED UNDER PM-VBRY: PM

Target: Creation of 3.5 crore jobs by 2027, and offering incentives to first-time employees (Part A) and employers (Part B).

Part A : First-Time Employees:

Targets first-time employees registered with Employees' Provident Fund Organisation (EPFO) and provides a wage support of up to Rs 15,000, released in two installments.

The first installment is paid after completing 6 months of service, second after 12 months with financial literacy programme completion.

Eligibility: Employees earning salaries up to Rs 1 lakh qualify for the incentive.

Savings Component: To promote the habit of saving, a portion of the incentive will be deposited in a savings instrument or fixed account, which the employee can withdraw after a specified period.

Part B – Incentives for Employers:

Employers creating new jobs (salaries up to Rs 1 lakh) receive up to Rs 3,000/month per employee for 2 years. Incentives apply only for new jobs sustained for at least six months.

In manufacturing, incentives extend to the 3rd and 4th years, with Part B expected to create around 2.6 crore new jobs.

70 LAKH JOBS CREATED UNDER PM-VBRY: PM

Practice Question (PYQ-Style)

With reference to the Pradhan Mantri Viksit Bharat Rozgar Yojana (PM-VBRY), consider the following statements:

- 1. It provides incentives to both first-time employees and employers who generate additional employment.**
- 2. The scheme came into effect on August 1, 2025 with a target of creating over 3.5 crore jobs over a two-year period.**
- 3. Incentives under the scheme are restricted exclusively to the manufacturing sector.**

Which of the statements given above is/are correct?

- (a) 1 and 2 only**
- (b) 2 and 3 only**
- (c) 1 and 3 only**
- (d) 1, 2 and 3**

70 LAKH JOBS CREATED UNDER PM-VBRY: PM

Answer

Correct Option: (a) 1 and 2 only

Explanation: Statement 3 is incorrect - PM-VBRY incentives are not restricted to the manufacturing sector; the scheme is aimed broadly at formal employment generation across sectors. Statements 1 and 2 correctly describe the scheme's dual incentive structure, effective date and job-creation target.

MOVING FROM DRONE PURCHASES TO DRONE PARTNERSHIPS

Moving from drone purchases to drone partnerships

The Indian government's planned \$2 billion drone procurement from domestic manufacturers reinforces its commitment to indigenous manufacturing and will boost the country's growing drone industry. It also signals a shift from buying large, sophisticated platforms such as fighter aircraft to smaller, cheaper and more attritable systems. This shift also means procurement practices will have to address the challenges that come with the territory.

Long-term capital procurement that deals with systems such as tanks and fighter jets, is likely to struggle to keep pace with the rapid demand for upgrades and modifications. The willingness to spend money on these platforms is a good sign, but the question now is whether procurement systems will spend it well.

The economics of drones

Although public conversations about military drones typically focus on large uncrewed combat aerial vehicles (UCAVs) such as the MQ-9B Reaper and the Bayraktar TB-2, recent conflicts have exemplified the utility of smaller, cheaper drones.

These typically fall within the 'micro' and 'nano' drone categories, and are built to be cost-effective. Both Iran's use of drones against the United States and Israel, and the use of drones in the Russia-Ukraine war, have followed this principle. Intercepting drones that are being used to strike high-priced hardware, is typically far more expensive than the drones themselves. The trend across recent wars has been to produce vast numbers of cheap drones, and deploy them in large numbers. Creative uses and modifications of drones that were originally manufactured for commercial use, have also served as an inexpensive means to achieve military objectives.

Ukraine's use of first-person-view (FPV) drones that have been retrofitted with warheads has made many headlines. Innovation in the defence



Adya Madhavan

Researcher at the
Takshashila
Institution

India's drone
ambitions
require smarter
contracts and
continuous
innovation

drone sector is therefore closely linked to innovation in civilian drone technology, creating a need for more iterative and collaborative research and development (R&D) processes. The case of the Chinese drone industry demonstrates the benefits of closer collaboration among industry, academia and the military.

The challenge of drone relevance

The other unique aspect of procuring tactical drones, is that the challenge lies not in acquiring them, but in ensuring that they stay relevant. A state-of-the-art fighter jet or tank bought in 2015 is still relatively new today, and is reasonably competitive. Tactical drones bought today can be obsolete in as little as two to three years, as enemy capabilities and threat environments continue to evolve. Enemy electronic warfare (EW) units can adapt their jammers to the signal of a new drone in as little as six to eight weeks.

When Ukrainian engineers faced this issue, the solution was not to procure new systems with different communication links, but to replace radio links with fibre-optic cables. Processes need to be quick, and allow for rapid modifications and upgrades without the constraint of red tape and bureaucratic timelines.

Indian procurement frameworks have made some good provisions in this direction, but there is still scope for change. For instance, the draft Defence Acquisition Procedure (DAP) allows the armed forces to procure commercial-off-the-shelf (COTS) systems, enabling them to purchase commercial drones wherever they can be utilised. The DAP also has provisions to streamline upgrades. The Defence Procurement Manual (DPM) allows financial buffers for unforeseen repairs and upgrade costs. These are sensible moves.

The key shortcoming of current procurement frameworks is that buyer-seller relationships

remain fundamentally transactional. The underlying assumption is that once the government identifies a requirement, it can issue a tender and procure a product that meets it.

However, in a domain where technology evolves rapidly, products require continuous iteration and improvement.

Partnerships, not transactions

A more suitable model for tactical drone procurement may resemble a managed service contract rather than like purchasing hardware.

Much like large organisations that procure computers with maintenance, software updates and replacement support, the armed forces could enter longer-term agreements with drone manufacturers. Such contracts would provide industry with demand predictability while ensuring assured supply, upgrade pathways and surge production capacity during conflicts. They would also create a framework for continuous improvements, including performance enhancements and adaptations to evolving electronic warfare threats. Most importantly, they would foster closer collaboration between the armed forces and industry in a domain where technology changes rapidly and future requirements are constantly evolving.

While Indian policy frameworks continue to take steps in the right direction, perhaps structural changes within these frameworks could create an environment better suited to keeping pace with the evolution of tactical drones. India's domestic drone industry has the technical foundation to support a more sophisticated procurement relationship. The \$2 billion commitment is the clearest signal yet that the political will exists. Translating that into the right contractual architecture, one that prioritises sustained capability over one-off delivery, is the logical next step.

MOVING FROM DRONE PURCHASES TO DRONE PARTNERSHIPS

● Key Development

- The Indian government's planned \$2 billion drone procurement from domestic manufacturers reinforces its commitment to indigenous manufacturing
- Signals a shift from buying large, sophisticated platforms such as fighter aircraft to smaller, cheaper and more attritable systems

● The Economics of Drones

- Recent conflicts (Iran-US/Israel, Russia-Ukraine) demonstrate the utility of smaller, cheaper 'micro' and 'nano' drones over large UCAVs such as the

MQ-9B Reaper and Bayraktar TB-2

○ Trend across recent wars: produce vast numbers of cheap, attritable drones rather than a few expensive ones, since intercepting cheap drones is often costlier than the drones themselves

- **Ukraine's retrofitting of first-person-view (FPV) drones with warheads shows how the civilian drone sector drives military innovation**

● The Challenge of Drone Relevance

- Unlike tanks or fighter jets, which stay relevant for years, tactical drones can become obsolete in 2-3 years as enemy electronic warfare (EW) units adapt jammers within six to eight weeks
- Ukraine's solution to jamming was to replace radio links with fibre-optic cables - underlining the need for rapid, bureaucracy-free modification cycles

●

MOVING FROM DRONE PURCHASES TO DRONE PARTNERSHIPS

- Way Forward - Partnerships, Not Transactions

- A 'managed service contract' model (similar to IT maintenance contracts) is suggested instead of one-off hardware purchases

- Would ensure assured supply, upgrade pathways and surge capacity, fostering closer industry-military collaboration against evolving EW threats

Thank You